



AMERICAN FORK CITY COUNCIL
JUNE 4, 2024
SPECIAL SESSION, WORK SESSION MINUTES

Members Present:

Bradley J. Frost	Mayor
Ryan Hunter	Council Member
Clark Taylor	Council Member
Staci Carroll	Council Member
Ernie John	Council Member
Tim Holley	Council Member

Staff Present:

David Bunker	City Administrator
Camden Bird	Assistant City Administrator
Anna Montoya	Finance Officer
Stephanie Finau	Deputy Recorder
Patrick O'Brien	Development Services Director
Sam Kelly	Public Works Director
Al Scott	Assistant Public Works Director
Dan Loveland	Chief Building Official
Derric Rykert	Community Services Director
Cherylyn Egner	Legal Counsel
Aaron Brems	Fire Chief
Cameron Paul	Police Chief

Also present: Claire Oldham (PC), Dawna Whiting (AFPD Victim Advocates), Suzanne Nordin (AFPD VA), Carrie Gettys (AFPD VA), and Ryan Archuletta (Police Lieutenant).

The American Fork City Council met in a special session in conjunction with a work session on Tuesday, June 4, 2024, in the American Fork City Administration Conference Room, located at 51 E. Main Street, commencing at 4:00 p.m.

SPECIAL SESSION

1. Review and action on the following appointments:
 - a. Geoff Dupaix to the Planning Commission, with a term ending 2025
 - b. Claire Oldham to the Planning Commission as an alternate, with a term ending 2025.

Council Member Clark moved to approve Geoff Dupaix to the Planning Commission with the term ending 2025 and Claire Oldham to the Planning Commission as an alternate with term ending 2025. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
YES:	John, Holley, Carroll, Taylor, Hunter

2. Adjourn to work session.

Council Hunter moved to adjourn the meeting. Council Member John seconded the motion. Voting was unanimous.

The meeting adjourned at 4:05 pm.

WORK SESSION

The purpose of the City Work Sessions is to prepare the City Council for upcoming agenda items on future City Council Meetings. The Work Session is not an action item meeting. No one attending the meeting should rely on any discussion or any perceived consensus as action or authorization. These come only from the City Council Meeting.

1. Discussion on amendments to the general fee schedule.

Ms. Montoya reported that she submitted the changes that were turned in by the departments to their specific fees.

Council Member Taylor asked what the final decision on the fees for the post building permits was and for those who don't get a building permit and build anyways. Ms. Montoya replied that the fee would be up to \$1,500 as a punitive fine. Mr. O'Brien commented that it would be the penalty fee when they access the building permit.

Council Member John asked what happens if the person can't finish their project because it does not meet code. Mr. O'Brien replied that the fee would be the same regardless of whether there was a penalty fee there or not. If a builder does not meet code, they can't do their project. In the past, there have been people who had to take down their projects that didn't receive proper approval. He commented that it is something they are willing to do on a staff level if the Council wants them to follow through on pushing through every avenue to shut down projects. If they don't get the correct approvals, then staff will work with Ms. Egner.

Council Member John asked if there were projects right now that applied for permits that are partially built but will not meet the code. Mr. O'Brien replied that the challenge is the builders are part way through their construction and haven't gotten the correct inspections

and it is hard to do a thorough framing inspection when they've gotten caught up and installed. He stated that in those circumstances there are setback issues because they are getting the permit but are not meeting the correct setbacks. He added that they give the permit to the applicant so they can have an approved safe structure and a certificate of occupancy.

Mr. O'Brien stated that there are some allowances in the code that allow them to get the permit that way, but he suggested he would like to close that loop with the code rewrite and get people to respect the setbacks. He added that he was not against people that build structures in their backyard but most of the ones he's seeing are commercial and tenant improvements projects that are getting underway without any approvals prior. He mentioned that it is a drain on staff time to send 2 inspectors on a job for safety protocol and it sometimes leads to heated arguments on site which is why 2 inspectors go out. He mentioned that it takes more time to follow up on and monitor the projects and with a penalty fee it will recoup some of the cost and it would also help if it could be an incentive to follow the correct process or procedures.

Mr. O'Brien mentioned that he and Mr. Bunker discussed whether there should be different fees for residential versus commercial. This fee is for anyone who is building something without a site plan approval, or a plat related to an overall development. Mr. Bunker stated that there is a fee and a permit fee. Mr. O'Brien asked what an average fee for an accessory structure would be for tenant improvement or basement finishes or things of that nature.

Mr. Loveland commented that for a basement finish the fee is about \$300, for an accessory structure it's about the same. He added that there is a pattern of people who take risks and build them and ask for forgiveness later.

Mr. O'Brien mentioned that cancellations have dropped since the council approved the cancellation fees. The staff schedule doesn't get clogged up and the inspections don't get scheduled until the applicant is ready. He commented saying that maybe a higher fee would discourage applicants from getting on the schedule if they are not ready for inspection.

Discussion amongst the Council and staff ensued regarding permits, fees, non-compliance, and different scenarios this could affect it or how it can affect it.

Mr. Bunker suggested separating the fees. On the residential side there can be a lower fee and it could be for a basement finish due to a lot of people may not know you need a permit to finish a basement. If it is a new structure where they have to meet setbacks where they are pouring footings and foundation that fee will be higher. For commercials, you need a permit, and the fee would be higher.

Mr. Loveland commented that they do see a lot of “stop work” orders for tenant work. Mr. O’Brien stated that in the PI-1 zone dividing walls are being down out of units that are condo-minimized and becoming a separate dwelling. He did mention that the city does have a reputation for slowing work down until they come into compliance if they’re caught.

The mayor asked if there had been instances where there was a civil subtype lawsuit between neighbors and if the city ends up being in the middle. Discussions ensued about litigation and certain circumstances that have happened that the city had to deal with.

Mr. O’Brien asked if the fees are charged at the time of issuing the permit or do we charge prior to acceptance of plans for permit review that way it is just a regular fee that we are charging and there is a penalty fee associated with this and the regular fees applies once the plan is accepted and processed.

Discussion continued about when to charge the fees and how to get people to rectify that they didn’t get the right permit and approval.

Council Member Holley asked about a code for those who are *grandfathered* in, for example someone who has finished their basement or structure that is more than 5 years ago. Mr. Loveland replied that there is a state law that is addressing that type of situation right now and unless there is a safety issue then it cannot retro back on it. He added that there is a timeline that if it was 10 years we leave it be but if it was 5 years there were certain things we could do to make them update certain aspects. Discussion ensued regarding how far back they would go to charge a fine and how they can make people responsible for not getting the right approval and permits.

Mr. O’Brien added that he and Ms. Egner can put together a new code to have an enforcement that legitimizes the city code that it protects and ensures everyone follows the code. Mr. Bunker commented that they’ll adjust to the new numbers and discuss the process with Ms. Egner.

Council Member Carroll asked about the Board of Adjustments and if people go to the board for escalations and appeals. She also asked why the city has never had a fee before. Mr. Loveland replied that there is a lot of staff time involved in putting packets together, sending out notifications, and completing a staff report. Mr. O’Brien added that if the fee is not there, people are willing to roll the dice with their time especially if the fee is not high enough. Mr. Loveland clarified that the Board of Adjustments is different than the Board of Appeals. The Board of Appeals is if they disagree with a code the Board of Adjustments is if they have a land issue. Mr. Bunker added that the key point is its variance. People know they can’t meet the code and ask for the requirements to be waived for them.

Council Member Carroll asked about the Fitness Center fees. She stated that it went to a quarterly fee instead of a monthly fee and would the payment be a lump sum paid quarterly. Mr. Rykert replied that it is auto withdrawal that gets hit monthly for the plans. Mr. Rykert added that if you pay in advance for the year, you save two months, if it's monthly, you pay an extra two months.

Council Member Carol asked about the Robinson Park rental. Are the use of parks able to have the general public use it versus renting it out and what are the parameters or is it something we are not worried about right now. Mr. Rykert replied that it's a great discussion with promise. There are requests that are legitimate, like the Memorial Day 5K run that is done every year and they charge a fee, and we want to allow it in our city but there's never been a fee for it.

Council Member John asked about reserving under a non-profit. Mr. Rykert replied that right now there isn't anything for that and anyone can qualify for that. Mr. Bunker commented that it's hard with non-profits because they don't want to be charged and there may be non-profits that the city may be partial to and some that they may not be partial to. Council Member Holley asked if a business owner would count as resident. Mr. Rykert replied yes, since the business owner pays taxes in the city even though they might not live in the city.

Discussions amongst the Council and staff ensued about Fitness Center rates for residents and non-residents and having non-residents pay more and not having the residents' rates go up. They also discussed the cemetery fees and after hours pay on the weekend.

2. Review of the fiscal year ending June 30, 2025, budget book.

Ms. Montoya stated that there was a change this year. Road Capital projects fund was separated from the General Capital projects just so we can track that a little bit better. She mentioned it will move over to the fund balance after the audits to make sure that there are dedicated funds specifically for roads. She commented that she will bring forth the Certified Rate by next week when the budget gets approved and there will be no tax increase for this budget but is still waiting on the county to give those numbers to get the approval for next week.

She mentioned that Station 53 site analysis and concept design is included in the budget for \$50,000. Ms. Montoya added that there was \$250,000 included for the downtown revitalization plan to get the ball rolling in the downtown area. She commented that are some FTE changes (see page 67 of Budget Book for explanation of charges).

- The communications position went from part-time to full-time.
- Parks has an additional 1.5 part-time season laborers
- Senior Center proposing a full-time administrative assistant or Senior Manager from part-time.

- Police department – adding 2 additional police officers
- Fire department – adding 1.25 part-time firefighters to help with overtime costs
- Engineering added one full GIS technician
- Fitness Center allocation from the Senior Center Manager – it will be split between both

Council Member Hunter mentioned that as parks grow so do the assets and the need for more staff and he suggested that it come out of the PARC Tax in the future. Mr. Bunker cautioned that PARC Tax is not necessarily a guaranteed revenue stream because every so often it comes up for a vote. He added if the city were using the funds for operations, then not receive those funds then the city would have a drawdown on the budget. Mr. Bunker suggested that they could discuss that in the next budget workshop for the next fiscal year.

Mr. Bunker commented that it is a big lift every year when working on the budget and expressed appreciation to the Council for their guidance and direction to help shape the budget. He commended Ms. Montoya for all her work preparing the budget.

3. Report by Dawna Whiting on the American Fork Victim's Assistance program.

Ms. Whiting and Ms. Nordin introduced themselves and introduced Carrie Getty who has volunteered for many years with this program. AFD VA provides:

- Post-crisis supports to Victims of all violent crime
- Assess needs and provide referrals, assist with obtaining services
- Victims with appropriate educational and preventative information, develop safety plans and goals
- Act as liaison between victim, police officers, investigators, prosecutors, and community-based agencies.
- Assist with applications for Crime Victims Reparations which provides reparation for therapy and reimbursement for abuse related medical bills
- Assess need for and assist with obtaining Protective Orders or Stalking injunctions
- Monitor Perpetrator court appearance and provide Victim with updates and court notifications, inform victims of their rights and protect their interest.
- Aim to decrease recidivism, ensure victim safety, and hold batterer accountable.

Ms. Whiting went over the number of victims they have served from October 2023 to March 2024.

- 637 victims contacted
- 2,911 total services/assist

Ms. Whiting commented about the differences in numbers that they get from the number

of victims versus the number of calls that they make, and it's based on the victims' needs. She reported they do all their normal intake with victims and call them to get a feel of what they need and how they can give them help through the next couple of months. She added they never know what the victims may need and go from there.

Ms. Whiting reported that some of the victims aren't all Police department victims, they could also be children of victims.

Discussion about victim percentages and type of victims ensued between the AFD VA board members and the Council.

Ms. Whiting commented that anytime she counts a new victim in the quarter for the grant, it's a new case, new victim and the services should be duplicated throughout other quarters. She added that her services could be duplicated throughout other quarters. Ms. Nordin mentioned that when they call the victims and give them resources, they track each time they give some type of help during that phone call or in person visit with them.

Ms. Whiting did state the trend she is seeing is everyone is angrier and more demanding. She added most of the victims' age range from 25 to 48 years old. The mayor thanked the board for their report. Mr. Bunker mentioned that Chief Paul has great things to say about the Victim's Advocate program and how needed they are.

4. Adjourn.

The meeting adjourned 5:15 p.m.



Stephanie Finau
Deputy Recorder